

		must be part of the court file for this action. If the parties contend the agreements are confidential, the parties should have lodged copies of the agreements conditionally under seal and filed a noticed motion to seal the documents before the June 25, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiffs' motion—or make a decision regarding plaintiffs' requests for enhancement payments—until the agreements have been submitted to the court. The motion to seal should explain, <i>inter alia</i>, why plaintiffs' individual settlement agreements should be shielded from, e.g., the aggrieved employees whose interests plaintiffs purport to represent. <u>As to the proposed order and judgment (ROA 147):</u> 2. Counsel information should be removed from the caption page of the proposed order and judgment. 3. The settlement agreement, any amendment(s) thereto, and the notice letter (in English and Spanish) should be attached as exhibits to the proposed order and judgment. The hearing on plaintiffs' motion for approval is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Sheikh, et al. v. Surgical Care Affiliates, LLC 2022-01254790	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$3,450,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief.

		2. Was motion for final approval served on the LWDA? The proof of service (ROA 167) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents and how service was effected. 3. Plaintiff should state her total compensation to be received (including for any individual claims). 4. Has the deadline to opt-out, object and/or dispute for the remailed notices elapsed? If so, the administrator should state whether any exclusions, objections or disputes were received for the remailed notices. 5. Why did the class increase by 313 people? See Brief (ROA 169) at 2 n.2. 6. Per the amendment to the settlement agreement (§ 7.6), the parties must file with the court all disputes submitted by class members. The parties must file with the court the two "deficient" disputes referred to in paragraph 12 of the Forst Declaration, along with copies of the "cure of deficiency" letters. Forst Decl. § 12; see also Supp. Forst Decl. (ROA 178) § 5. 7. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 8. The "Lodestar Report" attached as Exhibit 4 to the Davies Declaration (ROA 174) is insufficient as each time entry must be separately identified by timekeeper, date, time spent and work performed. Plaintiff's counsel must submit copies of time records, billing statements, or other records contemporaneously documenting the work performed and time spent, including the specific tasks performed on the case, the time spent on each task, and the date each task was completed. 9. Plaintiff seeks \$19,911.14 in litigation costs. "Courier charges" and charges for "cumulative copies, faxes, scans, postage" are not recoverable and should be removed. Plaintiff's counsel should also provide additional information regarding the recoverability of the "database research fee," or remove it. 10. The court preliminarily approved administration costs not to exceed \$25,000. 2/26/26 Order (ROA 163) § 6. The class notice informed the class members and the aggrieved employees that the settlement administration costs would not exceed \$25,000. Forst Decl. (ROA 172) § 4 & Ex. A. The settlement administrator now seeks administration costs of \$27,000. Forst Decl. (ROA 172) § 20. As the notice has been sent, how do the parties propose to inform the class members and the aggrieved employees that the settlement administrator now seeks costs that exceed the amount
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		stated in the notice? In addition, the court notes that while plaintiff states the administrator’s “initial capped bid” of \$25,000 “was based on an estimate of 3,266” class members (Brief at 1 n.1), the parties and the administrator knew at least as of the preliminary approval motion that the class had more than 3,266 members (Brief at 2 n.2). 11. As to the proposed order and judgment (ROA 165): - The proposed order and judgment should also address the PAGA settlement by identifying the Aggrieved Employees and the PAGA Period. - The proposed order and judgment should state the number of valid disputes received. - Paragraph 3 should identify the class members who opted-out by name. The reference to the Forst Declaration should be removed. - The proposed order and judgment should include the following provision: “The parties, their counsel and the settlement administrator are ordered to administer the settlement in accordance with the terms of the settlement agreement.” - The proposed order and judgment should include the following statement: “The court hereby enters judgment in accordance with the Settlement Agreement, the February 26, 2026 Order Granting Preliminary Approval (ROA 163), and this Order and Judgment.” - The proposed order and judgment should state that the order and judgment will be posted on the settlement administrator’s website for at least 180 days. - Should the motion for final approval be granted, the court will hold a final accounting hearing on a Thursday at 9:00 a.m. Paragraph 20 of the proposed order and judgment should be revised accordingly. The final accounting hearing should occur after the deadline for class members to cash their checks. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and any amounts tendered to the State Controller’s Office under the unclaimed property law. The hearing on plaintiff’s motion for final approval is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to enable the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. The parties shall provide redlined copies of any revised documents (e.g., revised proposed order).
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		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
10	Padilla v. Surgical Care Affiliates, LLC, et al. 2024-01399066	<u>Status Conference in Padilla v. Surgical Care Affiliates, LLC, Case No. 2024-01399066</u> The court has reviewed the parties' joint status conference statement filed June 17, 2026 (ROA 74), and based thereon continues the June 25, 2026 status conference to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
11	Teffeteller v. Fitness International, LLC 2024-01407578	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$783,115 PAGA settlement. The court has the following questions and comments: 1. Were the supplemental motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. In the February 26, 2026 order (ROA 101), the court stated that the parties should provide the average, high and low individual PAGA payments. Plaintiff states the parties cannot do so at this time. Supp. Brief (ROA 104) at 14:3-9. This information is routinely provided with approval motions and the parties are ordered to provide it with the supplemental filing. Relatedly, plaintiff estimates the net settlement amount is approximately \$126,638.32. Supp. Brief at 15:13. Plaintiff states there are 20,326 aggrieved employees. <i>Id.</i> at 17:21. Is the estimated average individual PAGA payment \$6.23? 3. Paragraph 8 of the amendment to the settlement agreement should be revised (i) to specify the "Settlement" referred to in the first sentence, and (ii) to state that defendant will pay \$2,500 to plaintiff in addition to paying the \$785,115 Settlement Payment. Supp. Daugherty Decl. (ROA 106) Ex. 3; see also 2/26/26 Order (ROA 101) No. 6. 4. The "Releasees" provision in paragraph 10 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 7. It includes unrelated, ambiguous and/or unidentified third parties such